



Energy Act 1983

1983 CHAPTER 25

An Act to amend the law relating to electricity so as to facilitate the generation and supply of electricity by persons other than Electricity Boards, and for certain other purposes; and to amend the law relating to the duties of persons responsible for nuclear installations and to compensation for breach of those duties.

[9th May 1983]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

ELECTRICITY

Private generation and supply

1. Section 23 of the Electric Lighting Act 1909 (which prohibits persons other than Electricity Boards from commencing to supply or distribute electricity) and section 11 of the Electricity (Supply) Act 1919 (which restricts the establishment and extension of generating stations) shall cease to have effect.

Removal of restrictions on supply etc.
1909 c. 34.
1919 c. 100.

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Notice of
construction
or extension
of generating
stations.

2.—(1) Subject to subsection (5) below, any person other than an Electricity Board or a local authority who proposes—

(a) to construct or extend an electricity generating station having plant with a rating exceeding 10 megawatts, or

(b) to extend an existing electricity generating station in such a way that it will have plant with such a rating,

shall give written notice of his proposal to the Area Board for the area in which the station is or will be or, if it is or will be within the district of a Scottish Board, to that Board.

(2) The Secretary of State may make regulations as to the time when a notice under this section is to be given and the particulars which it is to contain.

(3) A person who is required to give a notice under this section shall be guilty of an offence if the work of construction or extension begins without the required notice having been given.

(4) A person guilty of an offence under this section shall be liable—

(a) on conviction on indictment, to a fine, or

(b) on summary conviction, to a fine not exceeding the statutory maximum.

1979 c. 11. (5) This section shall not apply in a case in which section 35 of the Electricity (Scotland) Act 1979 applies.

(6) References in this section to extending a generating station are references to increasing the rating of its plant.

Nuclear-
powered
generating
stations.

3.—(1) Subject to subsection (5) below, no person shall construct, extend or become the operator of a nuclear-powered generating station without the consent of the Secretary of State.

(2) A consent given for the purposes of this section may be subject to such conditions as the Secretary of State thinks fit.

(3) A person who contravenes subsection (1) above, or any condition of a consent given for the purposes of this section, shall be guilty of an offence.

(4) A person guilty of an offence under this section shall be liable—

(a) on conviction on indictment, to a fine, or

(b) on summary conviction, to a fine not exceeding the statutory maximum.

(5) This section shall not apply to the construction, extension or operation of a generating station by an Electricity Board.

(6) In this section "nuclear-powered generating station" means an electricity generating station the operation of which requires a licence under section 1 of the Nuclear Installations Act 1965; 1965 c. 57. and references to extending a generating station are references to increasing the rating of its plant. PART I

4.—(1) In section 35(1) of the Electricity (Scotland) Act 1979 (which relates to the control of private hydro-electric generating stations)—
Hydro-electric generating stations in Scotland. 1979 c. 11.

- (a) for the word "establish" there shall be substituted the words "construct or extend";
- (b) the word "new" shall cease to have effect;
- (c) the word "private", in both places where it occurs, shall cease to have effect; and
- (d) for the words "50 kilowatts", in both places where they occur, there shall be substituted the words "1 megawatt".

(2) Section 35(2) of that Act shall cease to have effect.

5.—(1) In this section "private generator or supplier" means a person other than an Electricity Board or local authority who—
Private generators and Electricity Boards.

- (a) generates electricity, or
- (b) supplies electricity generated otherwise than by an Electricity Board or local authority.

(2) Where a private generator or supplier requests an Electricity Board—

- (a) to give and continue to give a supply of electricity to premises where he generates electricity or from which he supplies electricity to others, or
- (b) to purchase electricity generated by him, or
- (c) to permit him to use the Board's transmission and distribution system for the purpose of giving a supply of electricity to any premises,

the Board shall offer to comply with the request unless on technical grounds it would not be reasonably practicable to do so.

(3) Subject to sections 6 to 8 below, an offer under this section may include such reasonable terms and may be made subject to such reasonable conditions as the Board may determine, including—

- (a) terms requiring security to be given for the payment of any sums that may become payable to the Board, and
- (b) the condition that any necessary planning or other consents are obtained (including, in the case of an offer by

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1957 c. 48.

the Central Electricity Generating Board, the consent of the Secretary of State under section 2(6) of the Electricity Act 1957).

(4) Every offer under this section shall include such reasonable terms and conditions as the Board may consider necessary to secure that the control by Electricity Boards of the operation of the electricity supply system is not impaired.

(5) If, before a request under this section can be complied with, it is necessary for any electric lines or other electrical plant to be provided, or for any other works to be carried out, the terms of an offer under this section—

(a) shall include an undertaking by the Board to provide the lines or other plant or carry out the works, and

(b) may require the person making the request to make payments to the Board in respect of any expenditure incurred by the Board in carrying out the undertaking.

(6) A request under this section shall contain such particulars, and shall be in such form, as may be prescribed by regulations made by the Secretary of State ; and such regulations may make provision for the payment to the Board by the person making the request of fees to meet the Board's administrative expenses in dealing with the request.

Charges for
supplies by
Electricity
Boards.

1947 c. 54.
1979 c. 11.

6.—(1) Subject to subsection (2) below, the price to be paid for electricity supplied by an Electricity Board in compliance with requests under section 5 above shall be in accordance with tariffs fixed under section 37 of the Electricity Act 1947 or section 22 of the Electricity (Scotland) Act 1979.

(2) Where, owing to special circumstances, the tariffs fixed under section 37 of the Electricity Act 1947 or section 22 of the Electricity (Scotland) Act 1979 are not appropriate to a supply requested under section 5 above, the terms of the Board's offer under section 5 shall specify the price proposed by the Board and any arrangements proposed for its revision.

Charges for
purchases by
Electricity
Boards.

7.—(1) Each Electricity Board other than the Central Electricity Generating Board shall as soon as practicable after the commencement of this section fix tariffs of prices that will be paid by the Board for electricity purchased by it in compliance with requests under section 5 above.

(2) In the case of any purchase in respect of which—

(a) there is no tariff in force under this section which is applicable, or

(b) the tariff applicable is not appropriate owing to special circumstances,

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the terms of the offer made by the Board under section 5 above shall specify the price proposed by the Board and any arrangements proposed for its revision.

(3) The principles on which tariffs are fixed and prices proposed by an Electricity Board in accordance with this section shall include the principle that a purchase by the Board in compliance with a request under section 5 above should be on terms which—

- (a) will not increase the prices payable by customers of the Board for electricity supplied to them by the Board, and
- (b) will reflect the costs that would have been incurred by the Board but for the purchase.

(4) The terms of an offer to purchase electricity in compliance with a request under section 5 above may include a requirement that the vendor shall make to the Board from time to time such reasonable payments as the Board may determine in respect of the costs of maintenance, operation and depreciation of the assets employed, and of the administrative expenses incurred, by the Board in complying with the request.

(5) The amount of the payments to be made to the Board in accordance with subsection (4) above may include an amount designed to give the Board a return on the assets there referred to (taking into account any payment of the kind referred to in section 5(5) above) which is not greater than any return that the Board expects to receive on comparable assets.

8.—(1) Each Electricity Board shall as soon as practicable after the commencement of this section prepare tariffs of charges that will be made by the Board to persons permitted to use the Board's transmission and distribution system in pursuance of requests under section 5 above.

Charges for use of transmission and distribution systems.

(2) In any case where—

- (a) there is no tariff in force under this section which is applicable to the use requested, or
- (b) the tariff applicable is not appropriate owing to special circumstances,

the terms of the offer made by the Board under section 5 above shall specify the charge proposed by the Board and any arrangements proposed for its revision.

(3) The principles on which tariffs are fixed and charges proposed by an Electricity Board in accordance with this section shall include the principle that charges should be no more than sufficient to provide a return on the relevant assets (taking into account any payments of the kind referred to in section 5(5) above) comparable to any return that the Board expects to receive on comparable assets; and for this purpose "relevant

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assets" means the assets employed by the Board in complying with requests for permission to use the Board's transmission and distribution system.

Disputes as to
offers under
section 5 etc.

9.—(1) Any dispute as to—

- (a) whether it would be reasonably practicable for an Electricity Board to comply with a request made to it under section 5 above, or
- (b) whether a tariff which is applicable in the case of any supply, purchase or use requested under section 5 above is appropriate to that case, or
- (c) the price or charge proposed by an Electricity Board in a case in which no tariff is applicable and appropriate, or
- (d) the reasonableness of any other term or condition of an offer made by the Board under section 5 above, or
- (e) the reasonableness of any payment demanded by an Electricity Board in accordance with section 7(4) above,

may be referred to the Secretary of State for determination by him or, if he thinks fit, by an arbitrator (or in Scotland an arbiter) appointed by him.

1950 c. 27.
1979 c. 42.

(2) The Secretary of State may make regulations as to the conduct of proceedings for the determination of disputes under this section; and the Arbitration Act 1950 and the Arbitration Act 1979 shall, in their application to disputes determined by an arbitrator appointed under this section, have effect subject to the provisions of such regulations.

(3) Regulations under this section relating to the determination of disputes by the Secretary of State may include provision—

- (a) enabling the Secretary of State to require a party to the dispute to pay a sum determined by the Secretary of State towards any administrative expenses incurred by him in connection with the determination of the dispute, and
- (b) as to awards of costs or expenses as between the parties to the dispute.

(4) Any sums paid to the Secretary of State by virtue of this section shall be paid into the Consolidated Fund.

(5) Subsections (6) to (8) below shall have effect in relation to Scotland, but subject to the provisions of regulations made by the Secretary of State under this section.

(6) Any arbiter appointed by the Secretary of State shall have the like powers for securing the attendance of witnesses and the production of documents and with regard to the examination of witnesses on oath and the awarding of expenses as if the arbitration were on a submission.

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(7) The arbiter may, and if so directed by the Court of Session shall, state a case for the opinion of that Court on any question of law arising in the proceedings.

(8) Any award of the Secretary of State or of an arbiter under this section may be recorded in the Books of Council and Session for execution and may be enforced accordingly.

10.—(1) The tariffs fixed under section 7 or 8 above shall be so framed as to show the methods by which and the principles on which the charges are to be made as well as their amount, and shall be published in such manner as in the opinion of the Electricity Board concerned will secure adequate publicity. Further provisions as to charges under sections 7 and 8.

(2) Tariffs fixed under section 7 or 8 above by an Electricity Board other than a Scottish Board shall be fixed after consultation with the Electricity Council, which shall consult the Secretary of State as to the methods by which and the principles on which charges are to be made.

(3) Tariffs fixed under section 7 or 8 above by a Scottish Board shall be fixed after consultation with the Secretary of State as to the methods by which and the principles on which charges are to be made.

(4) The tariffs required by sections 7 and 8 above may be altered or replaced from time to time, and need not be exhaustive.

(5) Before proposing a price in accordance with section 7(2) above or a charge in accordance with section 8(2) above an Electricity Board other than a Scottish Board shall consult the Electricity Council.

(6) An Electricity Board, in fixing tariffs and proposing prices or charges in accordance with section 7 or 8 above, shall not show undue preference to any person or class of persons and shall not exercise any undue discrimination against any person or class of persons.

11.—(1) Where a request is made to an Electricity Board under section 5 above and that Board ("the first Board") considers that the request could more appropriately be met by another Electricity Board ("the second Board"), the first Board may propose to the second Board that the second Board meet the request. Arrangements between Electricity Boards.

(2) If the second Board does not agree to a proposal under subsection (1) above, the first Board may refer the dispute to the Secretary of State for determination by him.

(3) If—

- (a) the second Board agrees to a proposal under subsection (1) above ; or

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- (b) the Secretary of State, on a reference under subsection (2) above, determines that the request is to be met by the second Board,

the request shall be treated as if it had been made to the second Board.

Meters to be of approved pattern.

12.—(1) Subject to subsection (5) below, no person shall use a meter for measuring the amount of electrical energy supplied by him to another person, or the electrical quantity contained in the supply, unless it is of an approved pattern.

(2) A meter is of an approved pattern for the purposes of this section if it is of a pattern for the time being approved by the Secretary of State or by a person who, for the purpose of implementing any Community obligation, is responsible for giving pattern approval in a member State other than the United Kingdom.

(3) A person who uses a meter in contravention of this section shall be guilty of an offence unless he believes, on reasonable grounds, that the meter is of an approved pattern.

(4) A person guilty of an offence under this section shall be liable on summary conviction to a fine not exceeding level 2 on the standard scale.

(5) This section shall not apply—

(a) in relation to a supply by an Electricity Board, or

(b) in relation to a meter installed before (and not moved since) the commencement of this section.

Duty of Boards to supply.

1899 c. 19.
1947 c. 54.

13. In section 27 of the Schedule to the Electric Lighting (Clauses) Act 1899 as incorporated with the Electricity Act 1947 (duty to supply premises within fifty yards of a distributing main) after subsection (1) there shall be inserted—

“(1A) Subsection (1) of this section shall not apply in relation to premises to which a supply of energy is already given, directly from electric lines belonging to the Undertakers, by a private supplier.”.

Inspection and testing of lines etc.
1882 c. 56.

14.—(1) In section 24 of the Electric Lighting Act 1882 (which empowers Electricity Boards to enter premises to which electricity is supplied by them) for the words “by the undertakers” in the second place where they occur there shall be substituted the words “(whether by the undertakers or by any other person) directly through electric lines belonging to the undertakers”.

(2) In section 36(1)(a) of the Schedule to the Electric Lighting (Clauses) Act 1899 (which provides for inspectors appointed under that Schedule to inspect and test the lines and works of

Electricity Boards and the supply of energy given by them), for the words "Undertakers' electric lines and works" there shall be substituted the words "electric lines and works of persons who supply energy".

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(3) Sections 39 and 42 to 48 of that Schedule (which make further provision as to testing and inspection, including provision giving inspectors the right of access to the premises of suppliers for the purpose of testing electric lines and instruments and provision penalising suppliers who fail to comply with the Schedule's requirements) shall apply in relation to suppliers of electricity other than Electricity Boards as they apply in relation to Area Boards and Scottish Boards.

(4) References in this section to the Schedule to the Electric 1899 c. 19.
Lighting (Clauses) Act 1899 are references to that Schedule as incorporated with the Electricity Act 1947. 1947 c. 54.

Miscellaneous and general

15. The enactments mentioned in Schedule 1 to this Act shall have effect subject to the amendments specified in that Schedule. Amendments relating to meters.

16.—(1) The Secretary of State may make such regulations as he thinks fit for the purpose of— Regulations relating to supply and safety.

(a) securing that supplies of electricity by Electricity Boards or other persons are regular and efficient; and

(b) eliminating or reducing the risks of personal injury, or damage to property or interference with its use, arising from the supply of electricity by an Electricity Board or any other person, from the use of electricity so supplied or from the installation, maintenance or use of any electrical plant.

(2) Without prejudice to the generality of subsection (1) above, regulations under this section may—

(a) make provision for relieving an Electricity Board from any obligation to supply or purchase electricity, or to permit the use of the Board's transmission and distribution system, in cases where electrical plant or fittings or their use do not comply with the regulations;

(b) prohibit the supply of electricity except by means of a system approved by the Secretary of State;

(c) make provision requiring compliance with notices given by the Secretary of State specifying action to be taken in relation to any electrical plant or fittings for the purpose of—

(i) preventing or ending a breach of regulations under this section, or

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(ii) eliminating or reducing a risk of personal injury or damage to property or interference with its use ;

- (d) make provision requiring notice to be given to the Secretary of State, in such cases as may be specified in the regulations, of accidents and of failures of supplies of electricity ;
- (e) make provision as to the keeping, by persons who supply electricity, of maps, plans and sections and as to their production (on payment, if so required, of a reasonable fee) for inspection or copying ;
- (f) provide for particular requirements of the regulations to be deemed to be complied with in the case of electrical plant or fittings complying with specified standards or requirements ;
- (g) provide for the granting of exemptions from any requirement of the regulations.

(3) Regulations under this section may provide that any person who contravenes any specified provision of the regulations, or any person who does so in specified circumstances, shall be guilty of an offence under this section.

(4) A person guilty of an offence under this section shall be liable on summary conviction to a fine not exceeding level 5 on the standard scale.

Charges for
availability
of supply.
1947 c. 54.

17.—(1) In section 37 of the Electricity Act 1947 (tariffs), after subsection (4) there shall be inserted—

“(4A) Tariffs fixed under this section may include charges in respect of the availability of a supply of electricity, and such a charge may vary according to the extent to which the supply is taken up.

(4B) Where the Electricity Council is consulted as to a tariff which includes a charge of the kind referred to in subsection (4A) of this section, the Council shall consult the Secretary of State as to the methods by which and the principles on which the charge is to be made.” ;

1922 c. 46.

and section 23 of the Electricity (Supply) Act 1922 (annual payments for standby supplies) shall cease to have effect.

1979 c. 11.

(2) In section 22 of the Electricity (Scotland) Act 1979 after subsection (3) there shall be inserted—

“(3A) Tariffs fixed under this section may include charges in respect of the availability of a supply of electricity, and such a charge may vary according to the extent to which the supply is taken up.

(3B) Before fixing under subsection (1) a tariff which includes a charge of the kind referred to in subsection

(3A), a Board shall consult the Secretary of State as to the methods by which and the principles on which the charge is to be made.”.

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18.—(1) This section applies to any purchase of electricity by an Electricity Board in accordance with arrangements made in pursuance of—

Purchases by Electricity Boards from local

(a) section 21(2) of the Control of Pollution Act 1974 (production of heat and electricity from waste etc.), or 1974 c. 40.

(b) section 11(2) of the Local Government (Miscellaneous Provisions) Act 1976 (production of heat etc. by local authorities). 1976 c. 57.

(2) The price at which a purchase to which this section applies is made shall be the same as it would be by virtue of section 7 above if the purchase were made in compliance with a request under section 5 above; and subsections (4) and (5) of section 7 shall apply to a purchase to which this section applies as they apply to a purchase made in compliance with such a request.

(3) Section 9 above shall apply to a dispute as to—

(a) the price at which a purchase to which this section applies is to be made, or

(b) the reasonableness of any payment demanded by an Electricity Board in accordance with section 7(4) above as applied by this section,

as it applies to disputes within section 9(1)(a) to (e).

19.—(1) For subsections (1) and (2) of section 50 of the Electricity Act 1947 (use of heat from generating stations) there shall be substituted—

Combined heat and power.

1947 c. 54.

“(1) It shall be the duty of every Electricity Board to adopt and support schemes—

(a) for the combined production of heat and electricity, and

(b) for the use of heat produced in combination with electricity, or incidentally from its generation, for the heating of buildings or for other useful purposes.

(2) Nothing in subsection (1) of this section—

(a) shall remove the need for an Area Board to obtain the approval of the Secretary of State under section 6 of the Electricity Act 1957 to proposals for the generation of electricity by the Board, or 1957 c. 48.

(b) shall require an Electricity Board to undertake expenditure in connection with a scheme which

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does not meet the financial criteria applied by the Board in relation to other expenditure of the Board.”.

(2) In subsection (3) of section 50 for the words “the last foregoing subsection” there shall be substituted the words “subsection (1) of this section”.

1979 c. 11.

(3) For section 15 of the Electricity (Scotland) Act 1979 (research into heating from electricity) there shall be substituted—

“Production
and use of
heat and
electricity.

15.—(1) It shall be the duty of each Board to adopt and support schemes—

(a) for the combined production of heat and electricity, and

(b) for the use of heat produced in combination with electricity, or incidentally from its generation, for the heating of buildings or for other useful purposes.

(2) For the purposes of a scheme under subsection (1), a Board may, in accordance with a scheme submitted by them to the Secretary of State and approved by order made with or without modification by him, exercise the powers conferred by section 13(8) for the purposes of that section, and section 13(9) shall apply in relation to the manner in which the powers are exercisable.

(3) Nothing in subsection (1) shall require a Board to undertake expenditure in connection with a scheme which does not meet the financial criteria applied by the Board in relation to other expenditure of the Board.”.

Abolition of
rights of
entry.

1899 c. 19.

1947 c. 54.

20. In the Schedule to the Electric Lighting (Clauses) Act 1899 (as incorporated with the Electricity Act 1947 or any other enactment), the following provisions (which give rights to enter premises for purposes connected with the supply and maintenance of meters) shall cease to have effect—

(a) in section 52 the words from “and for those purposes” to “acts”, and

(b) section 54(2).

The Electricity
Consumers’
Council.

21.—(1) There shall be a consumers’ council for England and Wales (in this section referred to as “the Council”) to be known as the Electricity Consumers’ Council.

(2) The Council shall consist of a chairman appointed by the Secretary of State, and not more than thirty other members made up of—

(a) the chairmen for the time being of the Consultative Councils established under section 7 of the Electricity Act 1947 for the areas of Area Boards, and

(b) such other persons as the Secretary of State may appoint.

(3) It shall be the duty of the Council to consider any matter affecting the interests of consumers generally of electricity supplied by Electricity Boards in England and Wales, or of any class of such consumers, being a matter which—

(a) is referred to the Council by the Secretary of State or the Electricity Council, or

(b) is the subject of a report or representations made to the Council by one of the Consultative Councils mentioned in subsection (2) above, or

(c) appears to the Council to be a matter to which consideration ought to be given apart from any such reference, report or representations.

(4) The Council shall report to the Secretary of State or, as the case may be, the Electricity Council on any matter considered by them by virtue of subsection (3)(a) above, and where it appears to them that action ought to be taken concerning any other matter considered by them under subsection (3) they shall make representations to the Electricity Council on that matter.

(5) The Council may, after consulting the Electricity Council, make representations to the Secretary of State on any matter considered by them under this section otherwise than on a reference by the Secretary of State.

(6) The Council shall consider any plans, arrangements or proposals of which they are informed under section 22 below and may make representations on them to the Electricity Council.

(7) The Council may refer to any of the Consultative Councils mentioned in subsection (2) above any matter which affects the interests of consumers of electricity in the area for which the Consultative Council is established or the interests of any class of those consumers.

(8) The Secretary of State may, after consultation with the Board concerned and with the Electricity Council, give such directions as he thinks fit to an Electricity Board in England or Wales with respect to matters arising out of representations made to him by the Council under this section, and shall send to the Council a copy of any such directions; and section 40(2) of the Electricity Act 1957 shall apply in relation to such directions as it applies in relation to directions under that Act.

(9) The Council shall make to the Secretary of State, as soon as possible after the end of each financial year of the Electricity Council, a report on the performance by the Council of their

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(10) In this section references to consumers of electricity include references to prospective consumers.

(11) Schedule 2 to this Act shall have effect with respect to the Council.

Functions of other bodies in relation to Electricity Consumers' Council.

22.—(1) It shall be the duty of the Electricity Council to inform the Electricity Consumers' Council of the general plans and arrangements of the Electricity Council and of the Central Electricity Generating Board for performing their functions in relation to the supply of electricity, and in particular of any proposal of the Central Electricity Generating Board to vary a tariff.

(2) The Electricity Council may refer any matter to the Electricity Consumers' Council and shall consider any representations or report made to them by the Electricity Consumers' Council.

1947 c. 54.

(3) In section 7 of the Electricity Act 1947 (which establishes Consultative Councils for the area of every Area Board) after subsection (4) there shall be inserted—

“ (4A) Each of the said Councils—

- (a) may make representations to the Electricity Consumers' Council on any matter which has been considered by them under subsection (4) of this section and affects the interests of consumers or prospective consumers of electricity in the area or of any class of those consumers, and
- (b) shall consider and report to the Electricity Consumers' Council on any matter which may be referred to them by that Council.”.

Offences.

23.—(1) Proceedings for an offence under this Part of this Act shall not, in England and Wales, be instituted except by or with the consent of the Secretary of State or the Director of Public Prosecutions.

(2) Where an offence committed by a body corporate under this Part of this Act is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of, any director, manager, secretary or other similar officer of the body corporate or any person who was purporting to act in any such capacity, he as well as the body corporate shall be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

(3) Where the affairs of a body corporate are managed by its members, subsection (2) above shall apply in relation to acts and defaults of a member in connection with his functions of management as if he were a director of the body corporate.

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24. Any power to make regulations conferred on the Secretary of State by this Part of this Act— Regulations: general.

- (a) shall include power to make different provision for different areas or in relation to different cases or circumstances ; and
- (b) shall be exercisable by statutory instrument, which shall be subject to annulment in pursuance of a resolution of either House of Parliament.

25. The enactments mentioned in Schedule 3 to this Act shall have effect subject to the amendments specified in that Schedule (being minor amendments and amendments consequential on the preceding provisions of this Part of this Act). Amendments.

26. In this Part of this Act—

Interpretation
of Part I.
1947 c. 54.

- “ Area Board ” has the same meaning as in the Electricity Act 1947 ;
- “ electrical fittings ” and “ electrical plant ” have the same meanings as in the Electricity Act 1947 ;
- “ electric line ” has the same meaning as in the Electric Lighting Act 1882 ; 1882 c. 56.
- “ Electricity Board ” means an Area Board, a Scottish Board or the Central Electricity Generating Board ;
- “ local authority ” means any of the following—
 - (a) a county or district council in England or Wales, the Greater London Council, a London borough council, the Common Council of the City of London, and the Council of the Isles of Scilly ;
 - (b) a regional, islands or district council in Scotland ;
- “ Scottish Board ” means the North of Scotland Hydro-Electric Board or the South of Scotland Electricity Board ;
- “ standard scale ” has the meaning given by section 75 of the Criminal Justice Act 1982 ; 1982 c. 48.
- “ statutory maximum ” has the meaning given by section 74 of the Criminal Justice Act 1982.

PART II

NUCLEAR INSTALLATIONS

Limitation of
operators'
liability.
1965 c. 57.

27.—(1) In section 16 of the Nuclear Installations Act 1965 (below called “the 1965 Act”), in subsection (1) (limitation of operator’s liability in respect of any occurrence to £5 million) for the words “five million pounds” there shall be substituted the words “£20 million or, in the case of the licensees of such sites as may be prescribed, £5 million”.

(2) After subsection (1) of that section there shall be inserted—

“(1A) The Secretary of State may with the approval of the Treasury by order increase or further increase either or both of the amounts specified in subsection (1) of this section; but an order under this subsection shall not affect liability in respect of any occurrence before (or beginning before) the order comes into force.”.

(3) In subsection (5) of section 13 of that Act (claim by a person who has himself paid compensation) for the words from “not exceeding the” to “pounds” there shall be substituted the words “(subject to subsection (5A) of this section)” ; and after subsection (5) there shall be inserted—

“(5A) The amount that a person may claim by virtue of subsection (5) of this section shall not exceed the amount of the payment made by him and, in the case of a claim made by virtue of paragraph (b) of that subsection, shall not exceed the amount applicable under section 16(1) or (2) of this Act to the person subject to the duty in question.”.

(4) In subsection (1) of section 19 of that Act (special cover for licensee’s liability), for the words “an aggregate amount of five million pounds” there shall be substituted the words “the required amount”; and after that subsection there shall be inserted—

“(1A) In this section “the required amount”, in relation to the provision to be made by a licensee in respect of a cover period, means an aggregate amount equal to the amount applicable under section 16(1) of this Act to the licensee, as licensee of the site in question, in respect of an occurrence within that period.”.

(5) In subsection (2) of section 19 of that Act, after the word “means” there shall be inserted the words “subject to subsection (2A) of this section”; and after subsection (2) there shall be inserted—

“(2A) When the amount applicable under section 16(1) of this Act to a licensee of a site changes as a result of—

(a) the coming into force of an order under section 16(1A) or of regulations made for the purposes of section 16(1), or

PART II

(b) an alteration relating to the site which brings it within, or takes it outside, the description prescribed by such regulations,

the current cover period relating to him as licensee of that site shall end and a new cover period shall begin.”.

(6) In section 20(1) of that Act (duty to notify Secretary of State when claims reach £3 million), for the words “three million pounds” there shall be substituted the words “three-fifths of the required amount within the meaning of section 19”.

(7) In section 26(1) of that Act, in the definition of “occurrence”, after “16(1)” there shall be inserted “and (1A)”.

(8) Subsection (1) above shall not affect liability in respect of any occurrence before (or beginning before) the commencement of this section; and where the amount applicable under section 16(1) of the 1965 Act to the licensee of a site is increased by virtue of subsection (1) above, then for the purposes of section 19 of that Act the cover period relating to him as licensee of that site and current at the commencement of this section shall end and a new cover period shall begin.

28.—(1) In subsection (1) of section 18 of the 1965 Act (general cover for compensation)—

(a) for the words “and (3)” there shall be substituted the words “to (4B)”, and

(b) for the words from “an aggregate” to the end there shall be substituted the words “the aggregate amount specified in subsection (1A) of this section”.

(2) After subsection (1) of that section there shall be inserted—

“(1A) The aggregate amount referred to in subsection (1) of this section is the equivalent in sterling of 300 million special drawing rights on—

(a) the day (or first day) of the occurrence in question, or

(b) if the Secretary of State certifies that another day has been fixed in relation to the occurrence in accordance with an international agreement, that other day.

(1B) The Secretary of State may with the approval of the Treasury by order increase or further increase the sum expressed in special drawing rights in subsection (1A) of this section; but an order under this subsection shall not have effect in respect of an occurrence before (or beginning before) the order comes into force.”.

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(3) For subsection (4) of that section there shall be substituted—

“(4) In relation to liability by virtue of any relevant foreign law, there shall be left out of account for the purposes of subsection (1) of this section any claim which, though made within the relevant period, was made after the expiration of any period of limitation imposed by that law and permitted by a relevant international agreement.

(4A) Where—

(a) a relevant foreign law provides in pursuance of a relevant international agreement for sums additional to those referred to in subsection (1)(a) of this section to be made available out of public funds, but

(b) the maximum aggregate amount of compensation for which it provides in respect of an occurrence in pursuance of that agreement is less than that specified in subsection (1A) of this section,

then, in relation to liability by virtue of that law in respect of the occurrence, subsection (1) of this section shall have effect as if for the reference to the amount so specified there were substituted a reference to the maximum aggregate amount so provided.

(4B) Where a relevant foreign law does not make the provision mentioned in subsection (4A)(a) of this section, then in relation to liability by virtue of that law in respect of any occurrence—

(a) subsection (1) of this section shall not have effect unless the person (or one of the persons) liable is a licensee, the Authority or the Crown ; and

(b) if a licensee, the Authority or the Crown is liable, subsection (1) shall have effect as if for the reference to the amount specified in subsection (1A) there were substituted a reference to the amount which would be applicable to that person under section 16(1) of this Act in respect of the occurrence (or, if more than one such person is liable, to the aggregate of the amounts which would be so applicable) if it had constituted a breach of duty under section 7, 8 or 9 of this Act.”.

(4) In section 17(3)(b) of the 1965 Act (which restricts the cover required under section 18 in cases of shared liability)—

(a) in sub-paragraph (i), for the words “of five million pounds” there shall be substituted the words “equal to that applicable to the person in question under section 16(1) of this Act” ; and

(b) in sub-paragraph (ii), the words “not being less than £2,100,000 ” shall cease to have effect.

(5) This section shall not have effect in respect of any occurrence before (or beginning before) the commencement of this section.

PART II

29.—(1) In subsection (1) of section 21 of the 1965 Act Carriage of (compensation in respect of carriage), for the words “of nuclear £2,100,000” there shall be substituted the words “which is matter. the equivalent in sterling (on the day, or first day, of that occurrence) of 5 million special drawing rights”.

(2) After that subsection there shall be inserted—

“(1A) The Secretary of State may with the approval of the Treasury by order increase or further increase the sum expressed in special drawing rights in subsection (1) of this section; but an order under this subsection shall not have effect in respect of any occurrence before (or beginning before) the order comes into force.”.

(3) After subsection (4) of that section there shall be inserted—

“(4A) Subsection (3) of this section shall not apply where the carriage in question is wholly within the territorial limits of the United Kingdom.”.

(4) This section shall not have effect in respect of any occurrence before (or beginning before) the commencement of this section.

30. After section 25 of the 1965 Act there shall be inserted—

Provisions supplementary to sections 27 to 29.

“Orders.

25A. The power to make orders under section 16(1A), 18(1B) or 21(1A) of this Act shall be exercisable by statutory instrument; but no such order shall be made unless a draft of it has been laid before and approved by resolution of the House of Commons.

Special drawing rights.

25B.—(1) In this Act “special drawing rights” means special drawing rights as defined by the International Monetary Fund; and for the purpose of determining the equivalent in sterling on any day of a sum expressed in special drawing rights, one special drawing right shall be treated as equal to such a sum in sterling as the International Monetary Fund have fixed as being the equivalent of one special drawing right—

(a) for that day, or

(b) if no sum has been so fixed for that day, for the last day before that day for which a sum has been so fixed.

PART II

(2) A certificate given by or on behalf of the Treasury stating—

- (a) that a particular sum in sterling has been so fixed for a particular day, or
- (b) that no sum has been so fixed for a particular day and that a particular sum in sterling has been so fixed for a day which is the last day for which a sum has been so fixed before the particular day,

shall be conclusive evidence of those matters for the purposes of subsection (1) of this section ; and a document purporting to be such a certificate shall in any proceedings be received in evidence and, unless the contrary is proved, be deemed to be such a certificate.

(3) The Treasury may charge a reasonable fee for any certificate given in pursuance of subsection (2) of this section and any fee received by the Treasury by virtue of this subsection shall be paid into the Consolidated Fund.”.

Reciprocal enforcement of judgments.

31. In subsection (5) of section 17 of the 1965 Act (foreign judgments), at the beginning there shall be inserted the words “ Subject to subsection (5A) of this section ”; and after subsection (5) there shall be inserted—

“ (5A) Subsection (5) of this section shall not have effect where the judgment in question is enforceable in the United Kingdom in pursuance of an international agreement.”.

Meaning of “ excepted matter ”.

32. In section 26(1) of the 1965 Act (interpretation), in paragraph (a) of the definition of “ excepted matter ”, for the words “ or scientific ” there shall be substituted the words “ scientific or educational ”.

Extension to territories outside United Kingdom.

33. The provisions in respect of which the power conferred by section 28 of the 1965 Act is exercisable shall include the provisions of that Act as amended by this Act.

United Kingdom Atomic Energy Authority.
1954 c. 32.

34. Section 5(3) of the Atomic Energy Authority Act 1954 (which imposes a duty on the United Kingdom Atomic Energy Authority similar to that imposed by section 8 of the 1965 Act) shall cease to have effect.

PART III

GENERAL

35. There shall be paid out of money provided by Parliament— Financial provisions.

- (a) any administrative expenses of the Secretary of State attributable to this Act, and
- (b) any increase attributable to this Act in the sums payable out of money so provided under the Nuclear Installations Act 1965 c. 57.

36. The enactments mentioned in Schedule 4 to this Act are hereby repealed to the extent specified in the third column of that Schedule. Repeals.

37.—(1) This Act shall come into force on such day as the Secretary of State may appoint by order made by statutory instrument, and different days may be so appointed for different purposes. Commencement.

(2) An order under subsection (1) above may make such transitional provision and savings as appear to the Secretary of State to be necessary or expedient.

(3) If section 17(5) of the Nuclear Installations Act 1965 has not been brought into force under section 30(2) of that Act before the day appointed under subsection (1) above for the coming into force of section 31 of this Act, it shall come into force on that day.

38.—(1) This Act may be cited as the Energy Act 1983.

Short title and extent.

(2) The following provisions of this Act, namely—

- (a) Part I (except paragraph 11 of Schedule 2), and
- (b) Part I of Schedule 4,

do not extend to Northern Ireland ; but otherwise this Act does extend there.

SCHEDULES

Section 15

SCHEDULE 1

ELECTRICITY: AMENDMENTS RELATING TO METERS

The Electric Lighting (Clauses) Act 1899

1899 c. 19.

1947 c. 54.

1. The Schedule to the Electric Lighting (Clauses) Act 1899 (as incorporated with the Electricity Act 1947) shall be amended in accordance with paragraphs 2 to 14 below.

2. At the end of section 1 (interpretation) there shall be added—

“the expression “private supplier” means a person other than an Electricity Board who supplies electricity generated otherwise than by an Electricity Board.”.

3. In section 2 (definition of “the Undertakers”) the words from “forty-nine” to “fifty-eight” shall cease to have effect.

4. For section 49 there shall be substituted—

“Meters to be used except by agreement. 49.—(1) This section applies to—

(a) a supply by the Undertakers to an ordinary consumer, and

(b) a supply by a private supplier to a person (other than the Undertakers) who takes the supply directly from electric lines belonging to the Undertakers,

unless otherwise agreed between the Undertakers and (in a case within paragraph (a) above), the consumer or (in a case within paragraph (b) above) the private supplier.

(2) The value of a supply to which this section applies shall be ascertained by means of an appropriate meter duly certified under the provisions of this Schedule, and fixed and connected with the Undertakers' lines in some manner approved by the Secretary of State.

(3) References in this section and the following sections to the value of a supply are references to the amount of energy supplied or (according to the method of charging) the electrical quantity contained in the supply.”.

5. In section 50 (certification of meters) for the words “electric inspector appointed under this Schedule” there shall be substituted the words “authorised person”.

6. After section 50 there shall be inserted—

“Persons authorised to certify meters. 50A.—(1) The reference in section 50 above to an authorised person is a reference to—

(a) a meter examiner appointed under the Electricity Supply (Meters) Act 1936, or

(b) a person authorised by the Secretary of State under this section.

1936 c. 20.

SCH. 1

(2) The Secretary of State may authorise a person who manufactures or repairs meters to certify, in accordance with section 50 above, meters manufactured or repaired by him.

(3) An authorisation under this section may be given subject to such conditions as the Secretary of State thinks fit and may be withdrawn before the end of the period for which it is given if any of those conditions is not satisfied.

(4) The Secretary of State may make regulations prescribing fees to be paid to him by applicants for or holders of authorisations under this section towards administrative expenses incurred by him by virtue of this section; and different fees may be prescribed in relation to different areas and different cases.

Uncertified
meters—
offences.

50B.—(1) If the Undertakers or a private supplier install a meter for the purpose of ascertaining the value of a supply to which section 49 above applies and that meter, at the time when it is installed, is not a certified meter, the Undertakers or the supplier shall be guilty of an offence.

(2) Where a meter used for the purpose of ascertaining the value of a supply to which section 49 above applies ceases to be a certified meter, the person providing the supply shall as soon as practicable take all reasonable steps either for causing the meter to be recertified or for causing it to be removed or (if its removal is not reasonably practicable) for ceasing to supply energy through it.

(3) A person who fails to take the steps required of him by subsection (2) above shall be guilty of an offence unless he shows that the meter ceased to be a duly certified meter by reason only of its being altered or moved without his knowledge.

(4) A person guilty of an offence under this section shall be liable on summary conviction to a fine not exceeding level 2 on the standard scale (within the meaning of section 75 of the Criminal Justice Act 1982).

1982 c. 48.

(5) Proceedings for an offence under this section shall not, in England and Wales, be instituted except by or with the consent of the Secretary of State or the Director of Public Prosecutions.”

7. In section 51 (meter examiners to certify meters)—

- (a) for the words “or by any consumer” there shall be substituted the words “, the person supplied with energy or, where the supply is by a private supplier, that supplier”;
- (b) for the words “the supply” there shall be substituted the words “a supply to which section 49 above applies”; and
- (c) for the word “service” in both places where it occurs there shall be substituted the word “Undertakers”.

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8. In section 52 (Undertakers to supply meters if required to do so) for the words "the supply" there shall be substituted the words "a supply by the Undertakers".

9. For section 53 there shall be substituted—

"Meters not to be connected or disconnected without notice. 53.—(1) No meter used or to be used for ascertaining the value of a supply to which section 49 above applies shall be connected with, or disconnected from, any electric line belonging to the Undertakers by the Undertakers, the person supplied (or to be supplied) with energy or, where the supply is by a private supplier, that supplier unless the person intending to connect or disconnect the meter has given to the other person or persons mentioned above not less than forty-eight hours' notice in writing of the intention to do so.

(2) A person who contravenes this section shall be guilty of an offence and liable on summary conviction to a fine not exceeding level 2 on the standard scale (within the meaning of section 75 of the Criminal Justice Act 1982)."

1982 c. 48.

10. In section 54(1) (consumer to keep meters in order) for the words "the supply" there shall be substituted the words "a supply by the Undertakers".

11. In section 55 (power of Undertakers to let meters) for the words "the supply" there shall be substituted the words "a supply of energy".

12. In section 56 (Undertakers to keep meters let for hire in repair) for the words "the supply" there shall be substituted the words "a supply by the Undertakers".

13. For section 57 there shall be substituted—

"Questions as to correctness of meter to be determined by meter examiner.

57.—(1) Any question—

(a) whether a meter, by which there is ascertained the value of a supply to which section 49 above applies, is in proper order for correctly registering that value, or

(b) whether the value of such a supply has been correctly registered by any meter,

may be referred by any of the persons concerned to a meter examiner appointed under the Electricity Supply (Meters) Act 1936 for determination by him; and in this section "the persons concerned" means the Undertakers, the person supplied and, where the supply is by a private supplier, that supplier.

(2) Before determining a question referred to him under this section, the meter examiner shall give notice to the other person or persons concerned; and his decision shall be final and binding upon all the persons concerned.

1936 c. 20.

SCH. 1

(3) A meter examiner determining a question referred to him under this section may make awards of costs or expenses as between the persons concerned.

(4) In the case of a supply by the Undertakers the register of the meter used to ascertain the value of the supply shall, except as provided by this section, be conclusive evidence in the absence of fraud of that value.

(5) The Secretary of State may by regulations—

- (a) prescribe a fee to be paid to the Secretary of State by a person other than the Undertakers referring a question for determination under this section ;
- (b) specify circumstances in which the fee may be refunded ; and
- (c) make provision requiring the Undertakers to pay sums determined by the Secretary of State towards any administrative expenses incurred by him (and not recovered as mentioned in paragraph (a) above) in connection with the determination of questions under this section.”.

14. For section 59 there shall be substituted—

“Under-takers may place meters to measure supply or to check measurement.

59.—(1) Subject to subsection (2) below, the Undertakers may place upon the premises of any person supplied with energy directly from electric lines belonging to them such meter or other apparatus (in addition to any meter to ascertain the value of the supply) as they may desire for the purpose of ascertaining or regulating the amount of energy supplied to him, the number of hours during which the supply is given, the maximum power taken by him or any other quantity or time connected with the supply.

(2) A meter or apparatus placed upon premises under this section—

- (a) shall be of a construction and pattern approved by the Secretary of State and shall be fixed and connected with the Undertakers’ lines in a manner so approved ;
- (b) shall, where the supply of energy is by the Undertakers, be supplied and maintained entirely at the cost of the Undertakers ; and
- (c) shall be placed between the Undertakers’ mains and the ends of the Undertakers’ lines at which the supply of energy is delivered unless otherwise agreed between the Undertakers, the person supplied with energy and, where the supply is by a private supplier, that supplier.”.

SCH. 1

1936 c. 20.

The Electricity Supply (Meters) Act 1936

15.—(1) Section 1 of the Electricity Supply (Meters) Act 1936 shall be amended as follows.

(2) In subsection (1)—

(a) after the words “charged with”, there shall be inserted the words “such duties as the Secretary of State may determine in connection with”; and

(b) the words “by authorised undertakers” shall cease to have effect.

(3) In subsection (3), the words “by any consumer or the undertakers as the case may be” shall cease to have effect.

16.—(1) Section 2 of that Act shall be amended as follows.

(2) In subsection (1), for the words “by those undertakers” there shall be substituted the words “(whether by the undertakers or by another person) directly through lines belonging to the undertakers”.

(3) In subsection (2), for the words “by the other parties” (in both places where those words occur) there shall be substituted the words “through lines belonging to the other parties”.

(4) In subsection (3), for the words “by the undertakers” there shall be substituted the words “through lines belonging to the undertakers”.

The Electricity Act 1957

1957 c. 48.

17.—(1) Section 30 of the Electricity Act 1957 shall be amended as follows.

(2) In subsection (1)(c), for the words “the supply” there shall be substituted the words “a supply”.

(3) After subsection (4) there shall be inserted—

“(4A) Where a person other than an Electricity Board submits a meter to a meter examiner for certification under the provisions of the Schedule of 1899, the meter examiner may certify the meter, notwithstanding that he has not himself examined or tested it, if—

(a) the meter was manufactured or repaired by the person submitting it;

(b) that person has obtained the consent of the Secretary of State to the submission; and

(c) any conditions subject to which the consent was given have been satisfied.”

(4) Subsections (5) to (8) shall cease to have effect.

(5) In subsection (9), for the words “the supply” there shall be substituted the words “a supply”.

SCHEDULE 2

Section 21.

THE ELECTRICITY CONSUMERS' COUNCIL

The chairman

1. If the Secretary of State so determines, there shall be paid to the chairman of the Council such remuneration as the Secretary of State may determine.

2. If the Secretary of State so determines in the case of a person who has been remunerated under paragraph 1 above, a pension shall be paid to or in respect of that person, or payments towards the provision of a pension to or in respect of that person shall be made, in accordance with the determination.

3. If a person in receipt of remuneration under paragraph 1 above as chairman ceases to hold that office, and it appears to the Secretary of State that there are special circumstances which make it right that that person should receive compensation, he shall be paid by way of compensation a sum of such amount as the Secretary of State may determine.

Administration, personnel, etc.

4. The Council may, subject to the approval of the Secretary of State as to numbers, appoint such officers as appear to the Council to be requisite for the performance of their functions.

5. The Secretary of State shall provide the Council with funds—

(a) with which to pay—

(i) to their members, such travelling and other allowances as the Secretary of State may determine ; and

(ii) to their officers, such remuneration and such travelling and other allowances, as the Council may with the approval of the Secretary of State determine ; and

(b) with which to defray such other expenses in connection with the Council's functions as the Secretary of State may determine to be appropriate.

6. The Secretary of State may make arrangements for the Council to be provided with office accommodation.

7.—(1) There shall be paid such pensions, or arrangements shall be made for the payment of such pensions, as the Secretary of State may determine to or in respect of such persons who are or have been officers of the Council as the Secretary of State may determine.

(2) The Secretary of State shall provide the Council with funds with which to pay any such pension or to finance any such arrangements.

Constitution and procedure

8.—(1) The Secretary of State may make regulations with respect to—

(a) the appointment of, and the tenure and vacation of office by, members of the Council ;

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- (b) the appointment of one or more members of the Council as deputy chairman or deputy chairmen ;
- (c) the quorum, proceedings, meetings and determinations of the Council ;
- (d) the execution of documents and the mode of entering into contracts by and on behalf of the Council, and the proof of documents purporting to be executed, issued or signed by the Council or a member or officer of the Council ; and
- (e) any other matters supplementary or incidental to those mentioned in paragraphs (a) to (d) for which provision appears to him to be necessary or expedient.

(2) Subject to any regulations made under this paragraph, the Council shall have power to regulate their own procedure.

9. The validity of any proceedings of the Council shall not be affected by any vacancy amongst the members or by any defect in the appointment of a member.

Amendment of other Acts

1970 c. 44.

10. In section 14(1) of the Chronically Sick and Disabled Persons Act 1970, after the words "Electricity Consultative Councils" there shall be inserted the words "the Electricity Consumers' Council".

1975 c. 24.

11. In Part III of Schedule 1 to the House of Commons Disqualification Act 1975, there shall be inserted at the appropriate place in alphabetical order—

"Chairman in receipt of remuneration of the Electricity Consumers' Council".

Supplementary

12. The consent of the Treasury shall be required for any determination or approval by the Secretary of State under this Schedule.

13. Any payments to be made under paragraphs 1 to 3 above shall be made by the Secretary of State, and they and any other payments made by him under this Schedule shall be defrayed out of money provided by Parliament.

14. In this Schedule "pension" includes an allowance or gratuity payable on retirement or otherwise.

Section 25.

SCHEDULE 3

ELECTRICITY: MINOR AND CONSEQUENTIAL AMENDMENTS

The Electric Lighting Act 1882

1882 c. 56.

1. In section 25 of the Electric Lighting Act 1882, for the words from "supplying" to "special Act" there shall be substituted the words "a supply of electricity (whether by the undertakers or any other person) directly through electric lines belonging to them".

The Electric Lighting (Clauses) Act 1899

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2.—(1) The Schedule to the Electric Lighting (Clauses) Act 1899 1899 c. 19. (as incorporated with the Electricity Act 1947) shall be amended as 1947 c. 54. follows.

(2) In section 1, in the definition of “Electricity regulations”, for the words from “by” to the end there shall be substituted the words “under section 60 of the Electricity Act 1947 or section 16 of the Energy Act 1983”.

(3) In section 27—

(a) in subsection (4), after the word “electrical” in each place where it occurs there shall be inserted the words “plant or”; and

(b) in subsections (5) and (6), after the word “lines” there shall be inserted the word “plant”.

(4) In section 36(1)(c), for the words from “in” to “regulations” there shall be substituted the words “as the Secretary of State may determine”.

The Electricity Act 1947

3.—(1) Section 1 of the Electricity Act 1947 shall be amended as follows.

(2) In subsection (4)—

(a) for paragraph (b) there shall be substituted—

“ (b) by agreement with any person other than an Electricity Board, acquire supplies of electricity from that person”; and

(b) in paragraph (c), after the words “any other Area Board” there shall be inserted the words “or in compliance with a request under section 5 of the Energy Act 1983”.

(3) At the end of subsection (6)(c) there shall be inserted the words “and in complying with requests under section 5 of the Energy Act 1983”.

4.—(1) Section 2 of that Act shall be amended as follows.

(2) In subsection (4)(b), the words “under the foregoing section” shall cease to have effect.

(3) In the proviso to subsection (4), for the words from “exercise or” to the end there shall be inserted the words “manufacture electrical fittings or to manufacture, sell, hire or otherwise supply electrical plant.”

(4) In subsection (5), the words from “under” where it first occurs to “this section” and the words from “but” to the end shall cease to have effect.

5.—(1) Section 37 of that Act shall be amended as follows.

(2) After subsection (1) there shall be inserted—

“(1A) The prices to be charged by the Generating Board for any supply of electricity given in compliance with a request under section 5 of the Energy Act 1983 shall be in accor-

SCH. 3

dance with such tariffs as may be fixed from time to time by the Generating Board after consultation with the Electricity Council.”.

(3) In subsection (2), for the words “the last foregoing subsection” there shall be substituted the words “subsection (1) or (1A) of this section”.

(4) In subsection (7)—

(a) for the words “an Area Board”, in each place where they occur, there shall be substituted the words “a Board”, and

(b) for the word “consumer” there shall be substituted the word “person”.

(5) In subsection (8)—

(a) for the words “An Area Board” there shall be substituted the words “A Board”; and

(b) after the word “section” there shall be inserted the words “and in proposing prices in accordance with section 6(2) of the Energy Act 1983”.

6. In section 63 of that Act, after the words “the Electricity Act 1957” there shall be inserted the words “or Part I of the Energy Act 1983 or regulations made thereunder”.

7. In subsections (1) and (2) of section 64 of that Act, after the word “Act” there shall be inserted the words “or by Part I of the Energy Act 1983”.

8. In section 66(1) of that Act, after the words “the Electricity Act 1957” there shall be added the words “or Part I of the Energy Act 1983”.

The Clean Air Act 1956

1956 c. 52.

9. In section 10(4) of the Clean Air Act 1956, for the words from “a generating” to the end there shall be substituted the words “an electricity generating station by an Electricity Board (as defined in section 26 of the Energy Act 1983)”.

The Electricity Act 1957

1957 c. 48.

10. In section 2(7)(c) of the Electricity Act 1957, the words “under the preceding provisions of this section” shall cease to have effect.

The Clean Air Act 1968

1968 c. 62.

11. In section 6(10) of the Clean Air Act 1968, for the words from “a generating” to the end there shall be substituted the words “an electricity generating station occupied by an Electricity Board (as defined in section 26 of the Energy Act 1983)”.

The Electricity (Scotland) Act 1979

1979 c. 11.

12. In section 4 of the Electricity (Scotland) Act 1979, at the end of paragraph (c) there shall be added the words “and in complying with requests under section 5 of the Energy Act 1983”.

13. For section 8(1) of that Act there shall be substituted—

" 8.—(1) Subject to this section and to section 9 either of the Boards may—

(a) supply electricity to consumers in the district of the other Board, either—

(i) in compliance with a request under section 5 of the Energy Act 1983 ; or

(ii) by agreement with the other Board ;

(b) by agreement with the other Board give to or acquire from the other Board bulk supplies of electricity ;

(c) by agreement with any person acquire from that person supplies of electricity ;

(d) by agreement with the Generating Board or with any person or body of persons carrying on an electricity undertaking outside Great Britain, provide bulk supplies of electricity for the Generating Board or for that undertaking."

14. In section 22 of that Act—

(a) at the end of subsection (1) there shall be added the words "after consultation with the Consultative Council established for the district of that Board" ;

(b) in subsection (4), for the word "consumer" there shall be substituted the word "person" ; and

(c) in subsection (5), after the word "section" there shall be inserted the words "and in proposing prices in accordance with section 6(2) of the Energy Act 1983" .

15. In section 38(1) of that Act, after the words "the Act of 1957" there shall be inserted the words " , Part I of the Energy Act 1983 " .**16. In section 40(6) of that Act—**

(a) after the words "Schedule 7" there shall be inserted the words "or by virtue of Part I of the Energy Act 1983" ;

(b) in paragraph (d), after the word "regulations" there shall be inserted the words "other than regulations made by virtue of Part I of the Energy Act 1983" .

17. In Schedule 9 to that Act, after the words "by this Act" there shall be inserted the words "or by or under Part I of the Energy Act 1983, or regulations made thereunder, " .

Section 36.

SCHEDULE 4

ENACTMENTS REPEALED

PART I

ELECTRICITY

Chapter	Short title	Extent of repeal
51 & 52 Vict. c. 12. 62 & 63 Vict. c. 19.	The Electric Lighting Act 1888. The Electric Lighting (Clauses) Act 1899.	The whole Act. In the Schedule (as incorporated with the Electricity Act 1947 or any other enactment)— in section 2, the words from “forty-nine” to “fifty-eight”; in section 10, paragraph (a), paragraph (c) and the word “and” immediately preceding paragraph (c); section 38; in section 52, the words from “and for those purposes” to “acts”; section 54(2); section 60; in section 69(1), in paragraph (a) the words from “are” to “Schedule” and the words from “permitted” to “earth or”, paragraph (b) (and the word “or” preceding it) and paragraph (c); in section 69(2), the words “or work” in each place where they occur.
9 Edw. 7. c. 34.	The Electric Lighting Act 1909.	Section 23.
9 & 10 Geo. 5. c. 100.	The Electricity (Supply) Act 1919.	Section 11. In section 36, the definition of “private generating station”.
12 & 13 Geo. 5. c. 46.	The Electricity (Supply) Act 1922.	Section 23.
16 & 17 Geo. 5. c. 51.	The Electricity (Supply) Act 1926.	Section 24.
26 Geo. 5. & 1 Edw. 8. c. 20.	The Electricity Supply (Meters) Act 1936.	In section 1(1), the words “by authorised undertakers”. In section 1(3), the words “by any consumer or the undertakers as the case may be”.
9 & 10 Geo. 6. c. 49.	The Acquisition of Land (Authorisation Procedure) Act 1946.	In Schedule 4, the entry relating to the Electricity (Supply) Act 1919.

SCH. 4

Chapter	Short title	Extent of repeal
10 & 11 Geo. 6. c. 54.	The Electricity Act 1947.	In section 2(4)(b), the words "under the foregoing section". In section 2(5), the words from "under" where it first occurs to "this section" and the words from "but" to the end. In section 37(4), the words "on the premises of the consumer". Section 60. In Schedule 4— in Part I, the entries relating to section 23 of the Electric Lighting Act 1909, section 11 of the Electricity (Supply) Act 1919 and section 24 of the Electricity (Supply) Act 1926; and in Part III, the entries relating to sections 49 and 60 of the Schedule to the Electric Lighting (Clauses) Act 1899.
2 & 3 Eliz. 2. c. 60.	The Electricity Reorganisation (Scotland) Act 1954.	Section 1(3). In Part III of Schedule 1, the entry relating to the Electric Lighting Act 1888.
4 & 5 Eliz. 2. c. xciv.	The South of Scotland Electricity Order Confirmation Act 1956.	Section 40.
5 & 6 Eliz. 2. c. 48.	The Electricity Act 1957.	In section 2(7)(c), the words "under the preceding provisions of this section". Section 30(5) to (8). In Schedule 4— in Part I, the entries relating to sections 50 and 60 of the Electricity Act 1947; and in Part II, the entry relating to the Electricity (Supply) Act 1919.
7 Eliz. 2. c. ii.	The North of Scotland Electricity Order Confirmation Act 1958.	Section 27.
1969 c. 48.	The Post Office Act 1969.	In Schedule 4— in paragraph 8, sub-paragraph (b), in sub-paragraph (c) the references to sections 10, 60 and 69 of the Schedule to the Electric Lighting (Clauses) Act 1899 and sub-paragraph (g); paragraph 11.
1976 c. 76.	The Energy Act 1976	Section 14(6)(b).

SCH. 4

Chapter	Short title	Extent of repeal
1979 c. 11.	The Electricity (Scotland) Act 1979.	In section 7(3), the words "under this Act". In section 9(2), the words from "but" to the end. In section 22(3), the words "on the premises of the consumer". In section 35(1), the word "private" in both places where it occurs and the word "new". Section 35(2). In paragraph 13 of Schedule 10, the reference to section 60 of the Electricity Act 1947.
1981 c. 67.	The Acquisition of Land Act 1981.	In paragraph 1 of Schedule 4, the entry relating to the Electricity (Supply) Act 1919.

PART II

NUCLEAR INSTALLATIONS

Chapter	Short title	Extent of repeal
2 & 3 Eliz. 2. c. 32.	The Atomic Energy Authority Act 1954.	Section 5(3).
1965 c. 57.	The Nuclear Installations Act 1965.	In section 17(3)(b)(ii), the words "not being less than £2,100,000".
1969 c. 18.	The Nuclear Installations Act 1969.	Section 2.